

**JUSTIFICATION REVIEW DOCUMENT
FAR 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL**

Program/Equipment: The Army Management Staff College (AMSC) Advanced & Intermediate courses, and Civilian Education Systems (CES) requests a firm-fixed-price Indefinite-Delivery Indefinite-Quantity contract with Personal Strengths Publishing, LLC DBA Core Strengths for the Strength Deployment Inventory (SDI) 2.0 learning assessment.

Authority: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 implemented by FAR 13.5.

Amount: \$1,895,787

Prepared by:

[Redacted]

[Redacted]

Date: 1/31/2025

Contracting Officer:

[Redacted]

[Redacted]

Date: 2/20/2025

Technical:

[Redacted]

[Redacted]

Date: 2/20/2025

Requirements:

[Redacted]

[Redacted]

Date: 2/20/2025

Reviews: I have reviewed this justification and find it adequate to support sole source.

Program Manager:

[Redacted]

[Redacted]

[Redacted]

Date: See digital signature

[Redacted]

Control No. MICC 2025-12

Small Business Professional:

[Redacted]

[Redacted]

Date: See digital signature

Legal Counsel:

[Redacted]

[Redacted]

Date: See digital signature

Director, MICC-Fort Leavenworth:

[Redacted]

[Redacted]

Date: See digital signature

Assistant Director, Small Business Program:

[Redacted]

[Redacted]

Date: See digital signature

[Redacted]

**FAR 13.5 Simplified Procedures for Certain Commercial Items
Sole Source Justification and Approval**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Leavenworth 535 Kearny Ave, Bldg 338 Blockberger Terrace, Rm 207 Fort Leavenworth, KS 66027-1391.

2. Description of Action: The Army Management Staff College (AMSC), in support of their Civilian Education Systems (CES) Advanced & Intermediate courses, requests a five-year, firm-fixed-price Indefinite-Delivery Indefinite-Quantity contract with Personal Strengths Publishing, LLC (PSP) DBA Core Strengths. PSP is identified as a small business for all PSP's representations in SAM.gov. The Government projects award for January 2025 and fiscal year 2025 Operations and Maintenance, Army (OMA) funds will be utilized on individual task orders for the fiscal year in which they are processed. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: Instructional materials for the Army Management Staff College – Strength Deployment Inventory (SDI) Instrument and Certification.

The SDI was first developed in the 1950s when Elias Porter was part of the team that introduced client-centered therapy and the human potential movement. Porter worked closely with Carl Rogers at the University of Chicago, where he began working with personality assessments and was a contributor to Rogers' client-centered concepts. Porter's earliest assessments were based on Erich Fromm's descriptions of non-productive personalities, which were an advancement of Sigmund Freud's counseling concepts. In 1971, Elias Porter introduced the SDI and Relationships Awareness Theory to the world. His theory focuses on personal strengths and their underlying motivations as the key to understanding people and building relationships. The SDI is the practical application of the theory and was the first personality assessment to use colors. The SDI instrument is administered as part of AMSC's CES courses where the results are used throughout the entire duration of the course; specifically for team building, leadership, developing others, and conflict mitigation. SDI is essential for U.S. Army students because it helps individuals discover and influence the motives that drive behaviors. The tool provides valuable insights and a proven learning module that can be used to develop better leaders, more effective teams, and reduce the growing costs of conflict. SDI plays off people's basic need to better understand themselves and others; allowing students to lead with conflict mitigation practices, more effective teams, clarity. Only certified instructors can assess and administer the SDI – certified instructors administer the instrument and then assist students with the interpretation of results, which are used throughout the course.

SDI consists of four main premises: 1) Behavior is driven by motives, 2) Motives change in conflict, 3) Strengths can be overdone, 4) Filters influence perception. These

premises aid the Army in promoting effective communication, comprehension, collaboration, conflict mitigation, and team centered mission focus.

This action is a follow-on to contract W91QF4-24-P-0002. That contract was not competed under authority of Simplified Procedures for Certain Commercial Items, Title 41 U.S.C 1901. In addition, the paragraph, "Actions to Increase Competition" of the previous justification, stated: Competition is not feasible, SDI instruments are copyrighted and personal Strengths Publishing, LLC is the sole source provider. No additional action to increase competition is feasible because all the contractor's materials (SDI Instruments) are produced by PSP and are protected under the "1976 Copyright Act."

Table 1
Estimated Annual Minimum Order Quantities

Item Description	Estimated Min. Qty. per POP
Strength Instructor Certification	
Instructor Tool Kits	
SDI Instruments	

Table 2
Estimated Price per Period of Performance

Contract Period	Period of Performance	Estimated Price
Base Period:	17 MAR 2025 to 16 MAR 2026	
Option Period 1:	17 MAR 2026 to 16 MAR 2027	
Option Period 2:	17 MAR 2027 to 16 MAR 2028	
Option Period 3:	17 MAR 2028 to 16 MAR 2029	
Option Period 4:	17 MAR 2029 to 16 MAR 2030	
FAR Clause 52.217-8 option:	17 MAR 2030 to 16 SEP 2030	

*Increase of 2% per year applied to estimated annual price.

Total Value: \$1,895,787.00

4. Authority Cited: Simplified Procedures for Certain Commercial Items, Title 41 U.S.C. 1901 as implemented by FAR Subpart 13.5 - Sole Source Acquisition due to exclusive licensing agreements.

5. Reason for Authority Cited:

a. Facts and Circumstances Establishing the Need for Sole Source Procurement: The SDI tool is a commercial item that is available to the public. In accordance with FAR 13.500, this acquisition is greater than the simplified acquisition threshold but under the \$7.5 million threshold for commercial products and services. The SDI tool is designed to help people understand themselves and others about why they behave in certain ways, not just how they behave. The understanding can lead to meaningful, practical changes

[REDACTED]

in leaders and teams that minimize conflict and maximize effectiveness. The SDI assessment tool results help individuals and teams develop the awareness and skills they need to build more effective personal and professional relationships. Relationships are sustained by understanding the underlying motivations under two conditions; when things are going well, and when there is conflict. This tool helps people recognize they are free to choose behaviors that accommodate their values, while also considering the values of others. SDI is a copyrighted product produced by a sole source proprietor, Personal Strengths Publishing, LLC DBA Core Strength. The SDI instrument is administered as part of the CES advanced and intermediate courses offered at AMSC. The results are used throughout the entire duration of the courses to promote team building, leadership, and developing others. Not permitting the use of this instrument would negate the US Army Training and Doctrine Command (TRADOC)'s Accreditation of Training Operations Management Activity (TOMA)-validated Programs of Instruction (POIs) and would cause mission failure. TRADOC Regulation (TR) 350-70 Army Learning Policy dated 10 July 2017 consolidates policy for Army-wide production, implementation, and evaluation of Army learning products across the operational, institutional, and self-development (OISD) domains. Chapter 3, Section 5 of TR 350-70 specifically addresses the Army Learning Model with respect to its application to the self-development domain. TR 350-70 clearly defines the importance of self-development throughout the Army Learning Model, which SDI successfully contributes to. Not permitting the use of this instrument would substantially minimize the government's return on investment of over [REDACTED] spent to certify facilitators to assess and administer SDI. In order to use a different instrument, the government would need to allocate the cost to develop a new POI, as well as the cost for instructors to obtain new certifications. The estimated cost to the government to revise the current POI and obtain instructor certifications is over [REDACTED]

b. Alternatives: Through market research, many assessment tools have been identified in the market but none of them satisfy AMSC's needs like SDI. The DiSC assessment provides similar results; however, the risk to the government is students will assume the results are stable over time. The underlying theory behind DiSC suggests the results change as situations change. DiSC stands for the four main personality profiles Dominance, influence, Steadiness, and Conscientiousness. AMSC needs assessment tools that are stable and will apply consistently throughout the remainder of each student's lifetime. The Hogan assessment is considerably more expensive, the results do not discuss managing conflict, and the results are less intuitive to interpret. The Clifton Strengths assessment is a self-assessment used for understanding and identifying individual strengths, not weaknesses. This assessment does not discuss the way to collaborate with others in times of conflict. If any alternatives are accepted, the cost to the government would include revising the existing POIs and suspension of current courses to create new learning materials. The estimate to replace the current POIs and obtain new certifications for instructors is roughly [REDACTED]. SDI directly influences the success of the Army by providing students the ability to understand themselves and others in order to better mitigate conflict. Less conflict leads to better teamwork which directly impacts mission success. Multiple requests for information

[REDACTED]

have been published on SAM.Gov over the past 10 years and no other vendors other than PSP have been identified that can provide SDI. Additional market research performed by MICC-Leavenworth produced the same results.

c. **Additional Supporting Information:** A summary of the minimum annual requirements is captured in Table 1. The current inventory levels will last until the middle of March 2025 when the continuing resolution expires. Required materials are copyrighted to Personal Strengths Publishing, LLC (PSP) DBA Core Strengths. SDI is not available through other sources. All publications of Personal Strengths Publishing, LLC are protected under the “1976 Copyright Act”. They may not be reproduced, stored in a retrieval system, or transmitted in any form or by any means, electronic, mechanical, photocopying, recording, or otherwise, in whole or in part, without the express written permission of the copyright owner (PSP). It is illegal for anyone to: Reproduce the copyrighted work, prepare derivative works based on the copyrighted works, and distribute copies of the copyrighted works, without written consent by the owner of the copyright. Therefore, PSP is the sole supplier of all PSP materials.

d. **Impact if justification not approved:** SDI results are an integral part of the curriculum. Removing this instrument from the curriculum would require a full POI revision, as well as training and recertification of the AMSC faculty to gain mastery of the revised curriculum. Multiple course cancellations would occur while new POIs are developed and implemented, and directly impact mission success. A national accrediting body would have to approve a new self-assessment which causes a disruption in class instruction. Without continuity, Army students taking AMSC’s CES intermediate and advanced courses will not be able to mitigate conflict or navigate difficult interpersonal situations – directly impacting their contributions to their unit’s mission execution. Not permitting the continued use of this instrument would negate the government’s previous investment of over [REDACTED] to certify facilitators to assess and administer SDI. The government would need to reinvest funds to develop a new POI as well as cover the cost to re-certify instructors. The estimated cost to the government to revise the POI and obtain instructor certifications is estimated at over [REDACTED]

6. Efforts to Obtain Competition: Required materials and certification are not available through mandatory sources. Search of the GSA eLibrary revealed no sources of the required materials. A previous solicitation along with a J&A were posted to SAM.gov and produced no responses. Web searches of commercial sources for the required publications and certification resulted in one provider, Personal Strengths Publishing, LLC DBA Core Strengths. The Contracting Officer published the notices required by FAR 5.201.

7. Actions to Increase Competition: Intent to sole source with alternative consideration was posted to SAM.gov on 1 October 2024 for 30 days under Notice ID FY25SDICRA001. To date, no other sources have responded to express interest in the acquisition. No other sources have responded informing the contracting office that

instruments of the same nature and similar results are an equivalent alternative to Strengths Deployment Inventory offered by Personal Strengths Publishing, LLC. A sources sought notice was posted to SAM.gov from 18 December 2024 to 6 January 2025 under Notice ID W91QF4-25-Q-A002. No sources responded.

8. Market Research: Strengths Deployment Inventory is copyrighted material and only available through Personal Strengths Publishing, LCC DBA Core Strengths. Market research was conducted from 1 October 2024 to 4 November 2024. Market research includes reviewing the awarded contracts and web searches to find assessments that provide personality insights. Please see section 5.b. for information why alternative vendors are unable to meet AMSC's requirement.

9. Interested Sources: To date, no sources have written to express interest in this acquisition throughout 10 plus years of publications to SAM.gov.

10. Other Facts:

a. Procurement History

Contract: W91QF415A0004

Period of Performance: 27 December 2013 – 26 December 2018

Vendor: Personal Strengths Publishing, LLC DBA Core Strengths

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Additional information: 5 orders with a total cumulative value of [REDACTED] were issued against W91QF4-15-A-0004

Contract: W91QF420A0029

Period of Performance: 11 June 2020 – 30 September 2023

Vendor: Personal Strengths Publishing, LLC DBA Core Strengths

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Additional information: 6 orders with a total cumulative value of [REDACTED] were issued against W91QF4-20-A-0029

Contract: W91QF4-23-P-0008

Award Date: 02 March 2023

Vendor: Personal Strengths Publishing, LLC DBA Core Strengths

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

Contract: W91QF4-24-P-0002

Award Date: 04 December 2023

Vendor: Personal Strengths Publishing, LLC DBA Core Strengths

Ordering Limit: [REDACTED]

Competitive Status: Sole Source

Authority: FAR 13.5

b. After reviewing all recent procurements of SDI all J&As identified PSP as the sole source provider. No alternatives exist at this time. PSP has provided a sole source memorandum validating PSP has copyrighted SDI as solely their material. The procurement history confirms the agencies need for an IDIQ due to several small orders to fulfil mission requirements. There have been multiple modifications to increase the BPAs price limit and small orders in short secession. All J&As cited the authority under FAR subpart 13.5 for simplified procedures for certain commercial items.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: See digital signature

Chief, Operations

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: See digital signature

Deputy Director, ASMC

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. The developed pricelist, to be included in the IDIQ has been determined fair and reasonable based on the quote provided, previous acquisitions, and the IGCE. Based on previous acquisitions the unit price has increased on average by 5.6% year after year. In FY 24, unit price decreased 6.8%. This was due to increasing the order quantity of SDI instruments from [Redacted] PSP provides greater discounts when the order quantity increases. The price fluctuation is consistent with the Bureau of Labor Statistics graph over the past four years. Due to the order quantity, the government is getting the pricing at or below the standard pricing available to the commercial market. As a part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial.

[Redacted Signature]

Date: 2025.02.20

12:29:38 -06'00'

Date: See digital signature

Contracting Officer

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Date: 2025.02.20

12:29:55 -06'00'

Date: See digital signature

Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of SDI assessment tools on a sole source basis pursuant to the authority of the Simplified Procedures for Certain Commercial Items, Title 41 United States Code Section 1901 as implemented by Federal Acquisition Regulation (FAR) 13.5. The estimated value of the contract is \$1.9 million for a performance period of five years consisting of a base period and four options years from approximately March 2025 through approximately March 2030, to include an additional six months for FAR Clause 52.217-8 if exercised. The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

KUKES.SCOTT.D
EAN.115193434
6

Digitally signed by
KUKES.SCOTT.DEAN.1151
934346
Date: 2025.03.03 12:51:20
-06'00'

SCOTT D. KUKES

Alternate Advocate for Competition

U.S. Army Mission and Installation Contracting Command, JB SA Fort Sam Houston, TX